

Phillips Property has always provided access to the Rader Property from the time the house was placed there in 1974. (*Ibid.*)

Dorray Road is a road about 12 feet wide that leads northeasterly from Highway 26 east of Mokelumne Hill, specifically about 800 feet east of the intersection of Highway 26 with Ponderosa Way (south). (FACC ¶ 8.) Dorray Road is a county road that serves several properties for approximately ½ mile, before entering the Phillips Property and then proceeding to the Rader Property (*Ibid.*)

Rader alleges that in 1981, the prior owners of the Phillips Property – the Andersons – gave her grandfather Easement Deed to use the road through the Phillips Property and into the Rader Property. (FACC ¶ 9; 12.) Rader alleges that in exchange for the Easement Deed, her grandfather agreed that the Andersons could erect a gate across the road where it entered the Phillips Property to prevent general public access and to protect animals, but that the Andersons could not use the gate to keep her grandfather out. (*Id.* ¶ 18.) The grandfather placed his name and street number on the gate but such sign was apparently removed by the Plaintiffs. (*Ibid.*)

In 2000, the Andersons deeded the Phillips Property to the Trust of Kelly Lynn's parents, Norman and Shirley Cupler. (FACC ¶ 12.) The Rader alleges that the former owners of the Phillips Property – as well as the Phillips when they purchased it – were on notice of the Easement Deed because Rader's name was on the entry gate to the Phillips Property, the access road leading to the Rader Property, was visible from the Phillips Property, and utilities ran along the access road. (*Ibid.*). Rader alleges that she, and her predecessors, open and notoriously used the access road for fifty years prior to the Phillips attempts to restrict its use. (FACC ¶ 10.)

At some point, Plaintiffs allegedly began blocking access to the road for both Rader, and also for various utility companies. Rader alleges that Plaintiffs took her name off the gate, replaced the locks on the gates, are building a steel barricade across her access points, and have blocked utilities from entering. (FACC ¶ 23.)

On June 23, 2022, Plaintiffs filed the instant action, bringing causes of action against Defendant for 1) Quiet Title, 2) Declaratory Relief, 3) Injunctive Relief, 4) Nuisance, 5) Trespass, and 6) Slander of Title. Defendant filed an Amended Cross-Complaint alleging similar claims on August 18, 2022.

Plaintiffs now move for judgment on the FACC.

II. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation.

(*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

III. Legal Analysis

A. Quiet Title

The elements of an action to quiet title are: 1) the claimant is the owner and in possession of the land and 2) the defendant claims an interest therein adverse to the plaintiff. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 740.)

Plaintiffs allege that Rader cannot maintain a claim for quiet title because her only purported ownership of the easement is from her grandfather's estate. They assert that because this did not occur until 2013 – well after they took ownership in 2000 – Rader's claim based on the estate cannot be maintained.

However, the FACC clearly pleads alternative theories of ownership to the easement, including notice or by prescriptive easement.

Constructive notice of an adverse interest to property can be had in two ways. First, constructive notice arises by the proper recording of an instrument containing that property right. (*Vasquez v. LBS Financial Credit Union* (2020) 52 Cal.App.5th 97, 108.) That clearly did not happen in this case. It is also possible to have constructive notice of a potential defect to the title where the purchaser "has knowledge of circumstances which, upon reasonable inquiry, would lead to that particular fact." (*Ibid* [citations omitted].) That is, in certain circumstances, where the purchaser has knowledge of certain facts or circumstances that should warn them of the need to make further inquiries into whether there are any adverse claims to the property. (*Ibid*.)

Somewhat similarly, the "elements necessary to establish a prescriptive easement are well settled. The party claiming such an easement must show use of the property which has been open, notorious, continuous and adverse for an uninterrupted period of five years. [Citations.]" (*McLear-Gary v. Scott* (2018) 25 Cal.App.5th 145, 159.) "[A]n essential element necessary to the establishment of a prescriptive easement is visible, open and notorious use sufficient to impart actual or constructive notice of the use to the owner of the servient tenement. [Citation.]" (*Ibid*.)

Here, Rader alleges that her family had open and continuous use of the easement from 1974 until the Plaintiffs attempted to block access. (FACC ¶ 10.) Rader alleges that her grandfather openly and notoriously used the road and even had his name and address posted on the gate across the road – and that it was Plaintiffs' who removed that name and address. (*Id.* ¶ 18.) Rader alleges that in addition to herself, others used the road including guests and utility companies, which were open and obvious to the Plaintiffs. (*Id.* ¶ 19.)